

Court No. - 21

Case :- WRIT - C No. - 14279 of 2012

Petitioner :- M/S Chandpur Enterprises Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Anr.

Petitioner Counsel :- Shubham Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

Put up as a fresh case on 27th March, 2012 before a Bench of which one of us(R.K.Agrawal, J) is not a member. Office is directed to place the papers before the Hon'ble Chief Justice for nominating another Bench.

Order Date :- 23.3.2012

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Court No. - 37

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Petitioner :- M/S Chandpur Enterprises Ltd.

Respondent :- Executive Engineer, Electricity Distribution Division & Anr.

Petitioner Counsel :- Shubham Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri Shubham Agarwal, learned counsel for the petitioner and Shri Pankaj Kumar Shukla, learned counsel for the respondent.

The petitioner is running a Steel Division of the Company at 3rd K.M. Chandpur Noorpur Road, Chandpur, District Bijnor. It is a heavy consumer of electricity with a load factor at 2000 KVA. The company approached the Court with a prayer to change the method of billing by calculating the billable demand as maximum demand of the current month, and not on cumulative maximum demand of the previous month. The Court by order dated 2.3.2012 in Civil Misc. Writ Petition No.11595 of 2012, relegated the petitioner statutory remedy before the Consumer Grievance Redressal Forum under clause 7 of the U.P. Electricity Supply Code, 2005. In pursuance to the direction of this Court dated 2.3.2012 the petitioner has filed complaints on 13.3.2012 and 16.3.2012 and has rushed to this Court for seeking direction that the forum should consider the stay application within a few days, in accordance with paragraph 6.10 of the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulation, 2007.

We find that the prayer is misconceived inasmuch as the forum has been constituted to consider the grievance and may grant interim order with regard to regular billing and method of billing. The petitioner has been paying the bills in the past without any protest. He made a request on 15.2.2012, to change the method of billing for which the matter has been relegated to the forum. There is absolutely no reason to entertain the writ petition for issuing directions to decide the issue hurriedly. The time stipulated in the third proviso to para 6.10 (1) of the Regulations of 2007, is not mandatory and starts running in any case on deposit under second proviso of the amount calculated on the basis provided or 50% of the impugned demand. The second proviso bars interim relief unless such amount is deposited. The deposit of Rs.8 Lacs on 15.3.2012. The date was fixed on 13.3.2012 for 31.3.2012. On 17.3.2012 the quorum was not complete and thus 23.3.2012 was fixed.

We do not find that there has been such a delay, which may warrant interference at this stage. The writ petition is dismissed.

Date :- 27.3.2012

Anupam